BRENDAN NGWA NFORBI
[Mailing address]
[City, State ZIP]
[Telephone]
[Email]
Plaintiff in pro per

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

SAN JOSE DIVISION

BRENDAN NGWA NFORBI (also known as BRENDAN NGEHSI NEWANFORBI),

Plaintiff,

v.

[EMPLOYER LEGAL ENTITY, from wage statement; believed to be HOTEL MANAGEMENT GROUP CALIFORNIA, INC.], doing business as Delta Hotels by Marriott Santa Clara–Silicon Valley; and DOES 1 through 10, inclusive,

Defendants.

Case No. _____

COMPLAINT FOR:

(1) Violation of the Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(2)(A);
(2) Violation of the Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A);
(3) Violation of the Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.16;
(4) Employment Use of Information Disclosed Under Cal. Penal Code § 290.46

DEMAND FOR JURY TRIAL

Plaintiff Brendan Ngwa Nforbi alleges as follows:

PARTIES

1. Plaintiff worked at the front desk of the Delta Hotels by Marriott Santa Clara–Silicon Valley, 2151 Laurelwood Road, Santa Clara, California (the "Hotel"), in a dual Night Auditor and Guest Service Agent role under a written offer dated September 22, 2026.

2. Defendant [EMPLOYER LEGAL ENTITY] ("Employer") employed Plaintiff. Plaintiff's wage statements identify [EMPLOYER LEGAL ENTITY] as his employer. Paychex payroll correspondence concerning Plaintiff's employment identifies Hotel Management Group California, Inc. The September 22, 2026 offer was issued on "Delta Santa Clara" letterhead by the Hotel's General Manager and identifies John Barros, Hotel Manager, as one of Plaintiff's supervisors.

3. Plaintiff does not know the true names of Does 1 through 10. They include any person who obtained, received, or used information about Plaintiff disclosed under California Penal Code § 290.46, and any entity that shares control over the Hotel's front-desk hiring, training, scheduling, evaluation, or background screening. Plaintiff will seek leave to amend when their identities are known.

JURISDICTION, VENUE, AND INTRADISTRICT ASSIGNMENT

4. This Court has subject-matter jurisdiction over the First and Second Causes of Action under 28 U.S.C. § 1331 because they arise under the Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 et seq. See 15 U.S.C. § 1681p.

5. The Third and Fourth Causes of Action arise from the same nucleus of operative fact as the First and Second, namely Employer's procurement and use of a background report on Plaintiff in his hiring and employment. They form part of the same case or controversy. This Court has supplemental jurisdiction over them under 28 U.S.C. § 1367(a).

6. Venue is proper in this District under 28 U.S.C. § 1391(b)(2) because a substantial part of the events and omissions giving rise to the claims occurred at the Hotel in Santa Clara County.

7. This action arises in Santa Clara County. Assignment to the San Jose Division is proper under Civil Local Rule 3-2(c) and (e).

FACTUAL ALLEGATIONS

A. The Offer and the Background-Check Packet

8. On September 22, 2026, Human Resources Manager Denet Venegas emailed Plaintiff a written part-time offer at $24 per hour for Night Auditor and $23 per hour for Guest Service Agent. The offer was "contingent on the successful completion and passing of a background and reference check." The email attached a document titled "Universal Background Check Packet 2026."

9. The packet consisted of three pages:

(a) a "Criminal Background Checking Policy" stating that an applicant's first day of work "must not be prior to the satisfactory completion of the criminal

conviction check";

(b) an "Acknowledgment and Authorization for Background Investigation" authorizing "consumer reports" and "investigative consumer reports" by "Delta Santa Clara" "at any time after receipt of this authorization and throughout my employment," and authorizing "without reservation" any law-enforcement agency and others to furnish "any and all background information" to Universal Background Screening; and

(c) a form collecting Plaintiff's date of birth, Social Security number, and driver's license number for the consumer reporting agency.

10. The Acknowledgment recites receipt of "separate documents entitled DISCLOSURE REGARDING BACKGROUND INVESTIGATION, DISCLOSURE FOR INVESTIGATIVE CONSUMER REPORT (if applicable), A SUMMARY OF YOUR RIGHTS UNDER THE FAIR CREDIT REPORTING ACT." No such documents were included in the packet. Plaintiff did not receive them through any other channel, including any website, portal, or onboarding application, before he signed or at any time afterward.

11. Plaintiff signed and returned the offer and the Acknowledgment the same day.

12. On information and belief, Employer thereafter procured, or caused Universal Background Screening to prepare, a consumer report and an investigative consumer report about Plaintiff for employment purposes. This belief rests on three facts: the offer was contingent on the check; Employer's policy barred a first day of work before the check was complete; and Plaintiff was permitted to begin work on or about October 2, 2026. [Replace with the procurement date and procuring entity from the consumer-file disclosure when received.]

13. Plaintiff was injured by the absence of the required disclosures in the following concrete ways:

(a) *No disclosure at all.* Plaintiff does not complain that a disclosure he received was in the wrong format. He never received any disclosure, through any channel, before or after he signed. *See TransUnion LLC v. Ramirez*, 594 U.S. 413, 440–42 (2021)

(distinguishing plaintiffs who "did not allege that they failed to receive any required information" and complained only of its format).

(b) *Personal confusion and lack of informed consent.* [When he signed, Plaintiff did not understand that the Acknowledgment authorized Employer to obtain consumer and investigative reports about him "throughout [his] employment," not just once before hire. Nor did he understand that it purported to release "without reservation" "any and all background information" from law-enforcement agencies and others. He did not know what sources would be searched or that he could obtain a free copy of any report. Had he received a compliant disclosure, he would not have signed an authorization covering his entire employment "without reservation." *See Syed v. M-I, LLC*, 853 F.3d 492, 499–500 (9th Cir. 2017).] **Questions A1–A5**

(c) *Invasion of privacy.* Employer obtained and kept a report of Plaintiff's sensitive personal history, [including (offense-history / sex-offender-registry information)], without the informed authorization the law requires. That harm bears a close relationship to intrusion upon seclusion and the public disclosure of private information, harms traditionally recognized at common law. *TransUnion*, 594 U.S. at 425.

(d) *Lost chance to decide and to respond.* Without the disclosure, Plaintiff lost the chance to make a timely, informed decision about whether, and how broadly, to authorize the screening. He also lost the chance to address its use before it affected his employment. [He would have asked what would be searched; objected to any search for, or use of, Megan's Law website information, which California law prohibits employers from using for any purpose relating to employment, Cal. Penal Code § 290.46(j)(2)(E); and requested a copy of the report.] **Question A6** Plaintiff's injury does not depend on the report being inaccurate. Information that Employer could not lawfully use for employment purposes was obtained, and later used, without the disclosure that would have allowed Plaintiff to act.

(e) *Monetary harm.* [On information and belief, information in the report was used in reducing Plaintiff's scheduled shifts (¶¶ 25–26, 33–36). That reduction cost him paid hours and wages (¶¶ 15, 24, 44).] **Include only if the consumer file supports ¶ 25**

B. Training and Scheduling

14. On October 1, 2026, Barros texted Plaintiff his first roster, stating that he had assigned alternating morning and evening shifts "[b]ased on your availability" and that Plaintiff would "most likely" start Night Audit training on October 11 and 12.

15. The posted rosters assigned Plaintiff five overnight Night Audit shifts for October 11–17; four front-desk shifts for October 18–24; four overnights for October 25–31; three overnights for November 1–7; and two overnights for November 8–14. Each overnight ran from 11 p.m. to 7 a.m. with a 30-minute break. Excluding breaks, Plaintiff's scheduled paid hours were:

October 11–17: 37.5 hours; October 18–24: 31 hours;

October 25–31: 30 hours; November 1–7: 22.5 hours;

November 8–14: 15 hours.

That is a decline of about 54 percent from his pre-reduction average of about 32.8 hours per week. [Conform to payroll records when obtained.] The rosters for the weeks beginning October 25, November 1, and November 8 labeled Plaintiff "(Training)." Plaintiff was assigned no front-desk shifts after October 24, while a newly hired front-desk trainee was assigned three to four front-desk shifts in each of those weeks.

16. Justin Howell, a Night Auditor, was assigned to train Plaintiff on overnight shifts, including those beginning October 13, 14, and 15; October 27, 28, and 29; November 3 and 4; and November 10 and 11. [Insert facts showing Howell's evaluative role, e.g., who assigned him, whether he signed off on tasks or reported Plaintiff's progress to Barros.] **Questions B1–B4** On October 30, Plaintiff reported to Barros that he had completed approximately 70 percent of Night Audit tasks without Howell's assistance and offered to

cover additional front-desk shifts on November 5 or 6. Barros replied that he would "reach out if occupancy changes and additional staff is needed."

17. During overnight training, Howell repeatedly raised his voice at Plaintiff and berated him for asking about audit procedures, claiming with increasing frequency that he had already explained a task "five times," and then more. Plaintiff became reluctant to ask questions and was humiliated. Plaintiff recalls Howell saying, among other things: ["This is the twentieth time I've had to walk you through the Market Segment Entry tab. Red tab. First eight pages. If you ask me again, I'm reporting this incompetence to John." Howell also said: "How many times do I have to explain the Income Journal to you? It's been over twenty times! You can't even remember the Input Sheet tab. I don't know why John keeps wasting time and money training you."] **Question B6: verbatim or "in substance"**

18. Plaintiff is required to register under California Penal Code § 290. Information about Plaintiff is publicly displayed on the California Department of Justice Megan's Law website maintained under Penal Code § 290.46. Plaintiff's full name appeared on the Hotel's posted schedules and on a work computer display after he logged in.

19. On October 29, 2026, at approximately 6:20 a.m., near the end of the overnight shift that began October 28, Howell said that Governor Gavin Newsom "has been mass releasing a bunch of murderer-rapists just to obtain votes." After Plaintiff questioned that characterization, Howell looked at Plaintiff and said, "He released you didn't he?"

20. Plaintiff's attendance during training included call-outs and late arrivals:

(a) On October 8, Plaintiff emailed Ms. Venegas to call out of a shadow shift, and Barros instructed him to contact Barros directly in the future.

(b) On October 26, Plaintiff texted Howell and Barros after the 11 p.m. start that he was running late.

(c) On October 27 at 11:07 p.m., after his scheduled start, Plaintiff texted Barros that he could not attend that night's training and asked to use eight hours of

PTO. On October 28, Barros reminded Plaintiff of a policy requiring at least four hours' notice.

(d) At 11:01 p.m. on November 2, Plaintiff texted Howell that he had called earlier and could not work that night because of food poisoning. On November 3, Barros wrote that he had "heard" Plaintiff was not feeling well, repeated the four-hour policy, and stated that he had not received a call or message from Plaintiff directly. [Add the time of Plaintiff's earlier call to Howell and whether Howell answered.] **Question D1**

(e) Plaintiff texted Howell after the 11 p.m. start on November 3 and November 4 that he was on his way.

21. On a Thursday believed to be November 5, 2026, at 1:59 p.m., Barros texted that he had "just checked your time card and you were late 37 minutes." The text does not identify the shift. [Identify the shift if known.] **Question D2** Barros repeated the four-hour notice policy and stated that Plaintiff had not passed 90 days and was not eligible to use PTO. At 5:52 p.m. that day, Barros sent the November 8–14 roster assigning Plaintiff two overnights. When those assignments were decided, and by whom, is not yet known to Plaintiff.

22. On November 10, 2026, at approximately 11:38 p.m., Plaintiff asked Howell, "Why are you hovering over my shoulder?" Howell replied, "Well I am still your trainer am I not?" Plaintiff said, "Oh ok."

23. On November 11, 2026, at approximately 6:30 a.m., Plaintiff mentioned that he had been scheduled for one fewer day. Howell responded, in substance: "Well, it's because you've been calling out of your shifts. That's why John has been scheduling you less and less."

24. The Delta position was Plaintiff's sole source of earned income. **Question E1** Plaintiff pays rent of $90 per day, about $630 per week. In the three weeks before the reductions (October 11–31), his scheduled gross pay averaged about $778 per week. The

November 1–7 roster (about $540 gross) and the November 8–14 roster (about $360 gross) left his scheduled pay below his rent. Beginning November 5, 2026, the day he received the two-shift roster, Plaintiff substantially expanded his search for additional or replacement work. Through November 12 he submitted dozens of applications and scheduled multiple interviews. The loss of scheduled pay has placed Plaintiff's housing at risk and has caused him anxiety and distress, [describe specifically and truthfully], according to proof. **Questions E2–E5**

C. Source and Use of the Registry Information

25. [The report Universal Background Screening furnished to Employer on or about (DATE) contained a sex-offender registry entry identifying its source of record as (the California Department of Justice / California Sex Offender Registry). That entry reproduced information disclosed under Penal Code § 290.46. On information and belief, the report was accessible to (Hotel management / Barros / …), and the information in it was communicated to Howell or Barros before the November 1–7 and November 8–14 schedules were set.] **Include only if the consumer file supports it; otherwise omit ¶¶ 25–26 and the Second and Fourth Causes of Action**

26. [Howell was Plaintiff's assigned trainer on every overnight shift Plaintiff worked after October 26. In that role he was responsible for teaching, observing, and (evaluating) Plaintiff's audit work. Howell threatened to report Plaintiff's purported "incompetence" to Barros (¶ 17). He received Plaintiff's November 2 illness notice, after which Barros wrote that he had "heard" Plaintiff was ill. On November 11, Howell described Barros's scheduling decisions and their reasons. On information and belief, Howell conveyed to Barros an assessment of Plaintiff's training progress, performance, or attendance before the November 8–14 schedule was set, and Barros relied on that assessment in deciding how many shifts to assign. On information and belief, the assessment was influenced by information disclosed under Penal Code § 290.46 (¶ 25).]

FIRST CAUSE OF ACTION

Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(2)(A) — Against Employer

27. Plaintiff incorporates paragraphs 1 through 24.

28. Employer procured, or caused to be procured, a consumer report about Plaintiff for employment purposes.

29. Before doing so, Employer did not provide Plaintiff a clear and conspicuous written disclosure, in a document consisting solely of the disclosure, that a consumer report may be obtained for employment purposes, as 15 U.S.C. § 1681b(b)(2)(A)(i) requires.

30. Employer acted willfully, or at minimum in reckless disregard of its statutory duty. *Safeco Ins. Co. of Am. v. Burr*, 551 U.S. 47, 57, 69 (2007). The statute "unambiguously requires" a standalone disclosure. *Syed v. M-I, LLC*, 853 F.3d 492, 500 (9th Cir. 2017). An employer that provides no disclosure at all disregards the statute's plain text, and "[a]n interpretation of the FCRA that contradicts plain statutory text is objectively unreasonable." *Grijalva v. ADP Screening & Selection Servs.*, 151 F.4th 1055, 1060–61 (9th Cir. 2025). Employer's own Acknowledgment recites the existence of separate FCRA disclosure documents, which shows awareness of the requirement, yet the packet it transmitted did not contain them. In the alternative, Employer acted negligently. 15 U.S.C. § 1681o.

31. Plaintiff suffered the concrete injuries alleged in paragraph 13. He is entitled to statutory damages of not less than $100 and not more than $1,000, punitive damages, and costs under 15 U.S.C. § 1681n(a), or, in the alternative, actual damages and costs under 15 U.S.C. § 1681o.

SECOND CAUSE OF ACTION **[Conditional: requires ¶ 25]**

Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A) — Against Employer

32. Plaintiff incorporates paragraphs 1 through 26.

33. Reducing Plaintiff's scheduled paid shifts, from an average of about 32.8 paid hours per week to 22.5 and then 15 (¶ 15), was a "decision for employment purposes that adversely affects" a current employee and therefore an "adverse action." 15 U.S.C. § 1681a(k)(1)(B)(ii). Cutting a working hourly employee's scheduled shifts is an adverse

action because it deprives the employee of wages. *Cf. Nguyen-Wilhite v. Tapestry*, 2026 WL 836247, at *5 (S.D.N.Y. Mar. 26, 2026) (removal of a working hourly employee from the schedule "deprived her of her wages for a period of time").

34. On information and belief, Employer took that adverse action based in whole or in part on the consumer report, including its sex-offender registry entry (¶ 25).

35. Before taking that action, Employer did not provide Plaintiff a copy of the report or the summary of rights prescribed under 15 U.S.C. § 1681g(c)(3), as § 1681b(b)(3)(A) requires. Plaintiff therefore had no opportunity to review the report, or to dispute or explain its use, before his shifts were reduced.

36. Plaintiff's injury is concrete. He lost paid shifts and wages (¶¶ 15, 24, 44), with the consequences alleged in paragraph 24, and he was denied the opportunity the statute guarantees to respond before that loss. Employer's violation was willful (¶ 30) or, in the alternative, negligent. Plaintiff is entitled to actual damages, or statutory damages of $100 to $1,000, together with punitive damages and costs. 15 U.S.C. §§ 1681n(a), 1681o.

THIRD CAUSE OF ACTION

Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.16 — Against Employer

37. Plaintiff incorporates paragraphs 1 through 13.

38. A report of an individual's criminal history obtained for employment purposes is an investigative consumer report under California Civil Code § 1786.2. *See Connor v. First Student, Inc.*, 5 Cal.5th 1026 (2018). Employer caused an investigative consumer report about Plaintiff to be prepared or procured for employment purposes without first providing the clear and conspicuous standalone written disclosure required by California Civil Code § 1786.16(a)(2)(B) [verify subdivision]. That disclosure must identify the investigative consumer reporting agency, the nature and scope of the investigation, and the permissible purpose of the report. Employer also failed to provide a box to check to receive a copy of the report, as § 1786.16(b)(1) [verify] requires.

39. Plaintiff suffered the concrete injuries alleged in paragraph 13. He is entitled to his actual damages or $10,000, whichever is greater, and costs under California Civil Code § 1786.50(a). The violation was grossly negligent or willful for the reasons alleged in paragraph 30, entitling Plaintiff to punitive damages under § 1786.50(b).

FOURTH CAUSE OF ACTION [Conditional: requires ¶¶ 25–26]

Cal. Penal Code § 290.46(j)(2)(E), (j)(4)(A) — Against Employer and Does 1–10

40. Plaintiff incorporates paragraphs 1 through 26.

41. Section 290.46(j)(2)(E) prohibits the use of information disclosed under § 290.46 for purposes relating to employment, except as authorized by § 290.46(j)(1) or another provision of law. Section 290.46(j)(4)(A) makes "the user" liable for prohibited use. Liability extends to an employer that uses information disclosed on the Megan's Law website "as a basis for an employment decision." *Mendoza v. ADP Screening & Selection Servs., Inc.*, 182 Cal.App.4th 1644, 1657 (2010).

42. On information and belief, Employer, acting through Barros, used information disclosed under § 290.46 as a basis for an employment decision: the number of shifts assigned to Plaintiff for the weeks of November 1–7 and November 8–14. That information reached Barros [through the consumer report (¶ 25), through Howell's assessment (¶ 26), or both]. An employer whose decisionmaker relies on an assessment supplied by a person acting on a prohibited consideration is responsible for the resulting decision, even if the decisionmaker did not share that motive. *Cf. Reeves v. Safeway Stores, Inc.*, 121 Cal.App.4th 95, 108–09, 113–16 (2004); *Staub v. Proctor Hosp.*, 562 U.S. 411, 419–21 (2011). Barros's November 5 reference to a single late arrival does not show that the number of Plaintiff's shifts was set independently of that information. [On information and belief, the November 8–14 assignments were (decided before that review / not based solely on it).] In the alternative, Howell, acting within the scope of his employment as Plaintiff's assigned trainer, himself used the information for purposes relating to Plaintiff's employment, and Employer is vicariously liable for that use.

43. No exception applies. The use was not made to protect a person at risk: Employer continued to assign Plaintiff to overnight work with guests and staff. No other provision of law authorizes a hotel's use of Megan's Law website information in scheduling a front-desk employee.

44. As a result of the use and the scheduling decisions it influenced, Plaintiff lost paid shifts. Measured against his actual pre-reduction weeks (¶ 15), those losses are estimated through November 14, 2026 at about $533 to $655 in gross wages, and they continue to accrue according to proof. Plaintiff has also suffered emotional distress from the resulting threat to his housing (¶ 24). He will also incur any consequential losses actually and proximately caused by the lost wages, according to proof.

PRAYER FOR RELIEF

Plaintiff requests judgment against Employer and each other defendant found liable, as follows:

A. On the First Cause of Action: statutory damages of $100 to $1,000 and punitive damages under 15 U.S.C. § 1681n(a), or actual damages under § 1681o;

B. On the Second Cause of Action: actual damages, including lost wages, emotional distress, and consequential losses resulting from the adverse action, or statutory damages of $100 to $1,000, and punitive damages, under 15 U.S.C. §§ 1681n(a) and 1681o;

C. On the Third Cause of Action: actual damages or $10,000, whichever is greater, and punitive damages, under California Civil Code § 1786.50;

D. On the Fourth Cause of Action: actual damages, including lost wages, proven emotional distress caused by the prohibited use, and consequential losses actually incurred; the additional amount under California Penal Code § 290.46(j)(4)(A), not less than $250 and not exceeding three times actual damages; and exemplary damages or a civil penalty not exceeding $25,000;

E. Lost wages awarded once only, regardless of the cause of action under which they are proven;

F. Costs of suit; prejudgment interest as authorized by law; and post-judgment interest under 28 U.S.C. § 1961; and

G. Such other relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Under Federal Rule of Civil Procedure 38(b) and Civil Local Rule 3-6, Plaintiff demands a trial by jury on all issues so triable.

Dated: _____

[SIGNATURE IMAGE]

BRENDAN NGWA NFORBI

Plaintiff in pro per